

		arguments fail for the same reasons set forth above: Plaintiff failed to show Defendant violated any of its policies. To the extent Plaintiff argues her physical disability was so “obvious” that no documentation was necessary, Plaintiff failed to submit sufficient evidence of an obvious physical disability or the need to take an extended leave of absence. Plaintiff produced evidence her coworkers and supervisor may have observed Plaintiff suffer from morning sickness, but only a healthcare provider can determine whether she suffered from “severe morning sickness” requiring two months’ leave. (AMF 24-27; see also Plaintiff’s Compendium of Evidence, Ex. 2.) Notably, her own doctor did not believe her morning sickness was severe enough to warrant medical certification. (Response to DSS 13, 15; Plaintiff’s AMF 51; see also Bush Decl. ¶ 21.) If her own doctor did not find her condition to be “obvious” enough for an extended leave of absence, it would be unreasonable to expect her medically untrained coworkers and supervisors to find her condition “obvious” so as to excuse Plaintiff from a providing a doctor’s note. Plaintiff failed to meet her burden showing a triable issue of fact as to Defendant’s obligation to provide reasonable accommodation and/or further engage in the interactive process. The motion is therefore GRANTED as these causes of action. 3rd and 6th causes of action (failure to prevent and wrongful termination): These claims are derivative of Plaintiff’s other disability discrimination claims, and fail for the same reasons. (<i>Trujillo v North County Transit</i> (1998) 63 Cal.App.4th 286-88 [in general, there can be no failure to prevent discrimination if there are no successful discrimination claims; <i>City of Moorpark v. Sup. Ct. (Dillon)</i>(1998) 18 Cal.4th 1143, 1161[FEHA disability discrimination may form the basis of a common law claim for wrongful termination against public policy].) The motion is therefore GRANTED as these causes of action. <u>Punitive damages</u>: Based on the Court’s ruling on the motion as to all of Plaintiff’s claims, Defendant’s argument as to punitive damages is moot. <i>Counsel for Defendant shall give notice of this ruling.</i>
14.	Hammouri v. Ford Motor Company 23-1335621	(Continued))
15.	Pepper v. Lorkowski 25-1452672	(Moot)
16.	Carlton v. Ford Motor Company 24-1445099	Before the Court is the Motion for Summary Adjudication filed by Defendant Ford Motor Company (“Ford”) on 1/5/26. The Motion is DENIED .

The Opposition filed by Plaintiffs Richard Carlton and Patricia Carlton ("Plaintiffs") was untimely filed and untimely served. However, Plaintiffs have requested consideration under C.C.P. § 473(b) due to counsel's error, and Ford filed a reply. The Court has thus elected to consider the tardy Opposition.

Def. Ford moves for SAI on COA 6 (for fraudulent inducement – concealment) as asserted by Plaintiffs in their First Amended Complaint on the following issues:

ISSUE 1: Ps cannot establish that Ford had knowledge of a defect at the time of sale;

ISSUE 2: Ps cannot establish that Ford had any transactional relationship triggering any duty to disclose a known defect at the time of sale; and

ISSUE 3: Ps cannot establish an independent tort duty to except the fraudulent inducement – concealment COA from the economic loss rule ("ELR").

Ford first argues that Plaintiffs cannot establish that Ford had knowledge of a defect at the time of sale. But Plaintiffs have demonstrated a triable issue as to Ford's prior knowledge concerning the alleged transmission defect. (See UF 7; AF 9-26.) The Motion as to Issue 1 is therefore **DENIED**.

Ford also argues that Plaintiffs cannot establish that Ford had any transactional relationship triggering any duty to disclose a known defect at the time of sale. But a direct transactional relationship is not required in this context. (See *Gilead Tenofovir Cases* (2024) 98 Cal.App.5th 911, 949, rev. granted 5/1/24 ["a vehicle manufacturer owes a duty to purchasers of its vehicles to disclose known defects"], citing *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844.) Plaintiffs have presented evidence to assert the claim. (UF 1; AF 1-8.) The Motion as to Issue 2 is therefore **DENIED**.

Finally, Ford argues that COA 6 fails based on the economic loss rule ("ELR"). *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1 did not address claims of fraudulent inducement by concealment in the Song-Beverly context. (Id. at 41, fn. 12.) But *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 did do so. Under *Dhital*, fraudulent inducement by concealment claims are not barred by the ELR. (Id. at 843.) After *Rattagan* was decided, review of *Dhital* was dismissed. As *Dhital* thus controls here, the Motion as to Issue 3 is **DENIED**.

To the extent directed to material evidence, Ford's Evidentiary Objections, filed as ROAs 125 and 126, are **OVERRULED**. (C.C.P. § 437c(q).)

		<i>Counsel for Ford is to give notice of this ruling.</i>
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